

26SMCV00883 26SMCV00883

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-07

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CM%2C07%2F07%2F2026

Source SHA-256: 459f5d818dbd2bc4c17af04d15bf07efa07db3568829b1dac72148e929747cd4

Case Number: 26SMCV00883 Hearing Date: July 7, 2026 Dept: M

CASE NAME: Mahjobi, v. Israel,
et al.

CASE NO.: 26SMCV00883

MOTION: Motion
to Compel Deposition

HEARING DATE: 7/7/2026

Legal
Standard

Service of a proper deposition notice obligates a party or "party-affiliated" witness (officer, director, managing agent or employee of party) to attend and testify, as well as produce any document, electronically stored information, or tangible thing for inspection and copying. (CCP § 2025.280(a).) If, after service of a deposition notice, a party deponent fails to appear, testify, or produce documents or tangible things for inspection without having served a valid objection under CCP § 2025.410, the deposing party may move for an order compelling attendance, testimony, and production. (CCP § 2025.450(a).) The motion must be accompanied by a meet and confer declaration, or, when a party deponent fails to attend the deposition, the motion must also be accompanied by a declaration stating that the moving party has contacted the party deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) If the deposition notice included a request for production of documents, the motion to compel attendance must also show good cause to justify the production. (CCP § 2025.450(b)(1).)

A motion to compel production of documents described in a deposition notice must be accompanied by a showing of good cause. (CCP § 2025.450(b)(1).) In other words, the moving party must provide declarations containing specific facts justifying inspection of the documents described in the notice. Courts liberally construe good cause in favor of discovery where facts show the documents are necessary for trial preparation.

The motion to compel must be “made no later than 60 days after the completion of the record of the deposition.” (CCP § 2025.480(b).) This time limit also applies to motions based on a deposition subpoena for production of documents or a business records subpoena. The 60-day time limit runs from the date objections are served because the deposition record is then complete. (*Rutledge v. Hewlett-Packard Co.* (2015) 238 Cal.App.4th 1164, 1192.)

Analysis

Plaintiff Jamie Mahjobi moves to compel Defendant Rafi Israel M.D. to appear for his deposition and produce documents. Plaintiff also seeks monetary sanctions against Defendant in the amount of \$4,350.00.

Plaintiff demonstrates service of deposition notices on Defendant, including on May 7, 2026, and May 14, 2026. (*Keshvarian Decl.*, ¶4, Exs. A-B.) Defendant objected and refused to appear. (*Id.*, ¶¶ 4-5.) Defendant lodged no cognizable objection to the deposition notices. Defendant cites no authority that Plaintiff may not proceed with a deposition while a demurrer/motion to strike is pending. Notably, Defendant does not demurrer or move to strike the entire First Amended Complaint. The demurrer and motion to strike will not be dispositive on the entire action.

Plaintiff shows good cause for production of the four categories of documents, which seek medical records, images, charts, bills, and communications related to Plaintiff. These types of documents are subject to discovery in this medical malpractice action. Defendant fails to substantiate his objections to the requests. With respect to Defendant’s objection as to attorney-client privilege/work product as to request no. 3, that request expressly excludes communications with counsel and the insurance carrier.

Accordingly, the motion is GRANTED.

Sanctions are imposed in the reasonable total amount of \$1,750.00, inclusive of costs. The deposition will go forward with 20 days at a mutually agreeable time with documents produced five days before the deposition.